

April 12, 2023

The Office of Gov. Sarah Huckabee Sanders
500 Woodlane St.
Little Rock, AR 72201

RE: VETO REQUEST – SB 396

Dear Governor Sanders:

We write to respectfully request that you **VETO SB 396**.¹ The bill raises significant First Amendment concerns for Arkansas minors, would have negative effects on Arkansas teens by limiting the information available to them, and could unintentionally expose Arkansas minors to harm.

- **The bill imposes unconstitutional restraints on access to information by Arkansas minors.** All Americans, including Arkansas minors, have a First Amendment right to receive truthful, lawful speech. Simply put, the bill's limitation on minors' ability to access social media absent parental consent violates Arkansas minors' First Amendment right to receive lawful information. The constitutional right to free speech exists to protect discourse on public matters and to protect individuals' ability to access such discourse.² SB 396 would block Arkansas minors from access to such discourse and pose an unreasonable restraint on their ability to access lawful speech.
- **The broad sweep of the bill would limit Arkansas minors' ability to access important information online.** Outlawing Arkansas minors from accessing social media absent parental consent would hinder Arkansas teenagers from reaching a wealth of information and content that otherwise would be at their fingertips. SB 396 would treat an Arkansas 7-year-old the same as a 17-year-old. It would limit their ability to access information about universities, trade programs, military recruitment, job opportunities, cars, apartments, and other resources for their future unless a parent enables them to access such content. It would also restrict them from being active participants in the digital economy, which could have a significant and negative impact on Arkansas businesses. Shrinking the variety of products, services, content, viewpoints, voices, and information 17-year-olds can reach will not protect them, but instead will ensure they will not have the same experience with the Internet as their contemporaries living in other states.
- **The bill could unintentionally expose Arkansas minors to harm.** The bill's age verification requirements could effectively force companies to maintain databases of Arkansas minors' ages to prevent them from creating or accessing social media accounts. Such an outcome could be an attractive target for a nefarious individual or party to seek information about minors.

¹ Arkansas SB 396 (94th Gen. Assemb., 2023), located [here](#).

² See *Brown v. Entertainment Merchants Ass'n*, 131 S. Ct. 2729, 2733 (2011).



While we strongly agree with protecting Arkansas children and teens online, SB 396 would do the opposite while imposing a severe, unnecessary, and unconstitutional restriction on access to information. We urge you to defend the constitutional rights of Arkansas minors, and we encourage you to take steps to ensure Arkansas teens can continue to participate in the digital economy. We ask you to veto SB 396.

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Thank you for your consideration of this request.

Sincerely,

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